from challenging their detention in the courts, since the right to life and other fundamental rights had been suspended. Justice H.R. Khanna wrote a powerful dissent that cost him the position of chief justice of India – he was due to be elevated to the position in 1977 but instead a judge junior to him, Justice M.H. Beg, whose decision in the same case was sympathetic to the government, was elevated to the position. ADM Jabalpur is a judgement that India *will not* forget. However, this chapter considers a judgement that India *should not* forget. The Kartar Singh case[4] included similar features – the government played the 'national security' card, the court deferred to the government's position in the knowledge that doing so would violate fundamental rights, and citizens were left without a remedy. Only, in this case there was no significant voice of conscience from within the court such as Justice Jackson, Lord Atkin or Justice Khanna.

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The Terrorists and Disruptive Activities Act – better known as TADA – was enacted in 1985 in the backdrop of militant groups engaging in guerrilla-style conflict in Punjab, Kashmir, Andhra Pradesh and parts of the Northeast. However, the immediate catalyst for TADA was the assassination of Indira Gandhi by her Sikh bodyguards in October 1984. The parliamentary debates leading up to the enactment of TADA were high on histrionics. One Congress MP observed, 'In the rivers of Punjab milk used to flow but they are now drenched with blood. There is hatred all over.' Another warned the house that terrorism was not a problem restricted to Punjab – it had 'spread to every corner of the country'. And yet another cautioned, as if to sum up the situation: 'We are not dealing with normal peaceful times. We are dealing with extraordinary times.'

Initially enacted as a temporary measure for a period of two years, TADA was re-enacted in 1987 – once again for a two-year period. TADA originally applied only to Punjab and its neighbouring states. Thereafter, it was periodically extended both in time (from two years to four, four to six, and six to eight) and in its geographical breadth of application. By the mid-